



BỘ NGOẠI GIAO

HƯỚNG DẪN RIÊNG

PRIVILEGED INSTRUCTIONS

**Ministry of Foreign Affairs
SOCIALIST REPUBLIC OF VIET NAM**



BỘ NGOẠI GIAO VIỆT NAM

MINISTRY OF FOREIGN AFFAIRS



Privileged Instructions

Fundamental Principle

Peaceful coexistence with all nations within the region

Desired End State(s):

- Peaceful resolution of the East Sea (SCS) claims following international law including the United Nations Convention on the Law of the Sea (UNCLOS).
- Transformation of relations with China based on mutual respect.
- A strong Southeast Asia built around a strong ASEAN.

Principle Negotiation Positions

- Chinese aggression in the East Sea must end. Beijing must accept resolution of East Sea claims either through negotiation or through international arbitration consistent with international law including UNCLOS.
- Confidence building measures must be put in place in order to ensure that hostile incidents will not reoccur.
- An ASEAN SCS Code of Conduct with agreed enforcement measures and checks must be approved and implemented.
- We support the Philippine government's Zone of Peace, Friendship, Freedom and Cooperation (ZoPFF/C) as a valid basis for reducing East Sea tensions, and as a framework for both the long-term process of claim settlement and the basis for short-term processes and procedures required for the immediate exploitation of East Sea resources.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

GENERAL: We dispute China's historical account regarding its claims to the Spratly and Paracel Islands. Significant areas of both island chains are entirely within our territory, as defined under international law. Our nation had incorporated the Paracel Islands as part of Vietnam until the late 1970s before being forced out by the Chinese. The Spratlys are part of our continental shelf and as such our verifiable claims extend our EEZ to the UNCLOS limit of 350nm. UNCLOS provides the sole legal basis for and defines, in a comprehensive and exhaustive manner, the scope on maritime entitlements. China's aggressive acts within the East Sea, over the last few years, cannot go unchallenged.

We rely on a strong and united Southeast Asian region anchored in the multilateral Association of Southeast Asian Nations (ASEAN). Increased bilateral and multilateral relations with the regional powers of Australia, India, Japan, Russia, and South Korea further buttress us. Additionally our continued improving relations with the United States is the best modifier against China's increasingly aggressive and irresponsible behavior.

China: China would like to settle the dispute over the Spratlys through a bilateral agreement with our government. Most likely under terms extremely favorable to Beijing. Of substantial concern is the significant one-sided economic relationship we have with China. Our northern neighbor is our largest trading partner and main source of imports, which gives Beijing significant leverage over our economy. We recognize that our nation's future cannot be tied to a belligerent Chinese regime.

In your talks with the Chinese delegation, clearly state that immediate steps must be taken to reduce tensions. The termination of all military activity within the East Sea, for an indefinite period of time, and the immediate implementation of confidence building measures must occur. Strongly advocate that naval patrols and anti-piracy efforts, by East Sea nations, be replaced by non-East Sea nations drawn from Asia-Pacific nations, such as Australia, India, and South Korea.

As regards the Paracel Islands, Beijing refuses to discuss the subject except to assert that those islands constitute an indisputable part of the Chinese nation. As a way to advance a compromise position, your delegation may proffer that our government is willing to accept the Amphitrite Group as Chinese territory, if the Chinese will return the Crescent Group, the portion of the Paracels they seized from our nation in 1974, and recognize it as Vietnamese territory.

Reiterate that any settlement of East Sea claims must begin with the clarification of Chinese claims, within the nine-dashed line area, in accordance with UNCLOS provisions regarding islands, exclusive economic zones (EEZ) and continental shelves. Once delineated, then any overlapping claims can be resolved through multilateral negotiations or alternatively through formal arbitration under the auspices of the UNCLOS Tribunal.

Insist that China cease its efforts to block the implementation of an East Sea Code of Conduct armed with specific rules of behavior and code enforcement. China's improper influence, on certain ASEAN nations, to prevent any discussion of the East Sea situation has only served to increase regional instability, weaken ASEAN, and force the SEA and East Sea nations to look toward increased bilateral relations with, and regional involvement of, non-regional powers. You may point out this is not an outcome that serves Beijing's long-term interests.

Ensure that the Chinese delegation understands we will continue to support the Philippine government's actions to implement UNCLOS Tribunal arbitration. Inform the Chinese delegation that we are prepared to take similar actions if these negotiations fail to demonstrate acceptable progress toward a reasoned resolution of our mutual claims. We note that the Philippine ZoPFF/C is an admirable concept for beginning the process of positive East Sea-nation bilateral and multilateral actions that could build both confidence and trust between nations. We can both sort out and resolve competing claims, while simultaneously working together to harvest the East Sea resources to the mutual benefit of all East Sea nations.

The Philippines: With the Philippines, convey our support for their positions as they complement our own positions regarding China as laid out above. Ensure them that our stance on China is united with theirs on most points. Remind them that we sit in a precarious position with China. With our shared border, philosophies of governance, and economies, we are kindred communist countries. This requires much more nuance and compartmentalized interactions with Beijing. This allows us to work more closely with Chinese leaders in certain areas while vehemently protesting Chinese behavior in other areas. This being the case, it may be more prudent for our two delegations to join in any negotiations we may have with the Chinese delegation.

Indeed, our delegation should work with the Philippine delegation to promote the creation of agreed multilateral positions with all delegations, save the Chinese, so that we all speak with one voice as we engage the Chinese delegation in bilateral and multilateral meetings throughout the course of these negotiations.

Brunei, Indonesia, and Malaysia: Express our profound disappointment in the ASEAN process and members' previous inability to unite in support of ourselves, and the Philippines, on matters of such importance to all of ASEAN. We expect their full support for our positions in their talks with China. We are willing to partner with them on any meetings they have with the Chinese delegation, but with the inclusion of the Philippine delegation, and only if the meetings will advance this situation in a positive direction. The combined ASEAN governments must act as drivers of positive change and they must understand that they can be the key to positive outcomes. They must use their good offices with the Chinese for the betterment of ASEAN and ASEAN member states. To do so, we must gain the support also of non-regional countries with a stake in our regional success, and resist Chinese efforts to portray these partners as meddling in our affairs.

India and Japan: In your talks with India and Japan, note that our position is similar to that of the Philippines. Also, relate our delicate position with China, as noted above, especially in terms of the one thing that they can change – economics. Seek assurances of increased bilateral trade to counterbalance China. Regarding India, seek its assurance of continued military support in terms of training, weaponry imports, and joint exercises, and in terms of cooperative energy exploration and extraction endeavors within the East Sea. Seek the support of both nations to involve the Chinese delegation in multilateral, vice bilateral, negotiation sessions in order to display a united front, even if our positions are not completely aligned. Hopefully this will help pressure the Chinese to alter their positions as they come to understand that they alone are the outliers.

United States: In your talks with the US delegation, welcome their continued presence in the region and the need for their continued influence in order to help control Chinese ambitions and behavior. Express to them that we are happy to continue the expansion of our diplomatic, military and economic relationship. Our increased relations with the US are focused on securing Washington's support in placing ASEAN at the center on East Sea issues. Despite our recent issues, with the ASEAN leadership, our long-term our objective is to have ASEAN take the lead, in controlling Chinese behavior in Southeast Asia, in concert with the US and other regional powers, primarily Australia, India, Japan, Russia, and South Korea. The United States needs to take the lead in combined efforts to move Myanmar and Cambodia away from China's influence, which would then allow ASEAN to find the consensus it needs to deal effectively with China. Yet to foster improved ASEAN leadership within the region, the US must realize that we may oppose them in some ways, especially on issues that affect us regionally.